

Athens, 17-03-2025

No. Protocol: 939

DECISION 13/2025

The Personal Data Protection Authority convened at the invitation of its President for a meeting on Tuesday, 10-12-2024, at 10:00 a.m., in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Aikaterini Iliadou as rapporteur, and Grigoris Tsolias, as well as the alternate member Georgios Kontis in place of the regular member Christos Kalloniatis, who, although duly summoned, was absent due to an impediment. Present without voting rights were Stefania Plota, special scientist - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

With complaint No. G/EIS/23/04-01-2021 submitted to the Authority, A, a judicial employee of the Administrative Court of Appeals of Athens (hereinafter referred to as "complainant"), complains against the Administrative Court of Appeals of Athens (hereinafter referred to as "Administrative Court" or "Court") for violation of the right of access to his service file, the satisfaction of which was requested a) with his request to the competent employee B on ..., who responded that the file is not in the Service's archive, as well as b) with his application No. ... to the Administrative Court regarding information about the whereabouts of his file and why it is not in the Service's archive, and

2

on documents containing his personal data that have been stored on the service computer that was successively removed on ... and ... from the complainant's workplace, who points out that the removal of the computer amounts to deprivation of the employee's access to the OSDDY-DD1 platform. The complainant, regarding the removal of the computer from his office, had submitted to the Administrative Court of Appeals of Athens the report No. ... and the application No. ..., in which he requested to be informed under which decision the computer was removed, as well as to have "the tower of the computer" returned to him in its previous condition.

The Authority, in the context of examining the above complaint, with documents No. G/EX/1367/03-06-2021 and G/EX/1637/2-7-2021, invited the Administrative Court to express its views and requested to be informed regarding i. whether and what response was given to the complainant's requests, ii. where the complainant's service file is kept, iii. why the complainant's service computer was removed on ... and ..., iv. whether the complainant's right of access had been satisfied by the time of sending the Authority's first letter. The Administrative Court responded with document No. ... from the Office of the President of the Three-Member Management Council of the Administrative Court of Appeals of Athens that: "a) The judicial employee A serves in Department X of our Court. Disciplinary proceedings have been initiated against him, but no relevant decisions have yet been issued. For this reason, his service file was in the hands of the respective rapporteur, and even today it remains in the hands of the rapporteur for the disciplinary case that was to be tried on b) A service computer is not required for the performance of his duties in Department X of the Administrative Court of Appeals. c) On ... of ..., his computer was removed because two floors (...) of the Court were flooded due to a plumbing failure, leaving some Departments without a computer. Given that there is no surplus of computers, the Departments must have a computer to operate. Therefore, the management deemed it necessary to remove computers from Departments that could operate without a computer. d) Regarding the files he had in his personal computer file, he was asked if he needed them and he replied no,

3

Nevertheless, they are backed up. The files created in the O.S.D.D.Y. D.D. can be retrieved through a search.

The Authority transmitted the above opinions of the Administrative Court of Appeal on 06-07-2021 to

the complainant, who subsequently submitted to the Authority a memorandum dated 31-08-2021, in which he entirely rejects the responses of the Administrative Court of Appeal as inaccurate, legally and substantively unfounded, and claims that: "The truth is that only one (1) disciplinary action has been brought against me [...] There is one (1) decision pending regarding the disciplinary action that has been brought against me. The fact that a disciplinary action has been brought against me is a reason for which my written request for access to my file should have been immediately satisfied, a request that has not been fulfilled to this day. Furthermore, the employee's service file must always be available to him, as the data subject [...] there is absolutely no reason for it to be 'in the hands of the respective rapporteur' [...] there was no 'respectful rapporteur', but only one rapporteur [...] who, as a judicial officer, is not always accessible in a specific office, which he visits only when he has service duties to perform his jurisdictional responsibilities [...] Therefore, on the one hand, my service file must return to the personnel archive from which it originated, and I must be granted access to it, with a written response to my requests for the exercise of this right of mine, which has been pending for a significant number of months. The claim [...] that 'a service computer is not required for the performance of his duties in Department X of the Administrative Court of Appeal' is unfounded and inaccurate [...]. The computer is the necessary and essential equipment through which every employee of the Administrative Court of Appeal has the ability to access the content of their service email, as well as that of OSDDY-D.D. Through this service email, the administration of the Court and the administration of the secretariat sends orders, instructions, circulars, and informational messages regarding the daily service that concern the judicial employees. With the removal of my computer, I lost the ability to timely access my service email, access that specifically for OSDDY-D.D. is achieved synchronously during service hours only through my computer [...] The data controller [...] states that on ... my computer was removed because two floors were flooded (...) [...] This means, however, that due to an accidental incident (flood), I was deprived of access to the data concerning me, a fact for which the data controller should have informed your Authority within 72 hours, according to Article 33 of the General Data Protection Regulation as an incident of personal data breach [...] Therefore, the fact that two (2) floors of the Administrative Court of Appeal of Athens were flooded, resulting in computers being rendered unusable due to this flood, which led to the removal of my computer, constitutes such an incident that should have been reported to the Authority within 72 hours from the moment the data controller became aware of it. In any case, after the resolution of this issue, once the hydraulic problem eventually ceased and the operation of the Administrative Court of Appeal returned to normal, my computer should have been returned to me. None of the above seems to have taken place, and primarily I was never informed in writing of the reasons for which I was deprived of the right to access the data concerning me [...]. Additionally, the complainant claims that an unproven assertion is made that he responded negatively to the question of whether he needs the files he had in his personal computer file and that only with the provision of a computer to him will the right of access be restored, and he stated that "the deprivation of access to a service computer, beyond the inability to access the service email during working hours, amounts to [...] deprivation of the employee's access to the OSDDY-D.D. platform [...], through which platform the employee can, by entering his name in the appropriate field of the platform, search for and locate documents based on the protocol number he has submitted in his name to the service and has no other means of electronic identification of them [...] Furthermore, [...] the Administrative Court of Appeal of Athens has not responded as to whether it has appointed a Data Protection Officer and what the contact details are for this person, as it is obliged to announce according to Article 39 GDPR."

Following the examination of the file's elements, the Authority, with letters numbered G/EX/1116/10-04-2024 and G/EX/1115/10-04-2024, summoned the complainant A and the complained Administrative Court of Appeal of Athens, as legally represented, to attend via videoconference the session of the Authority's Plenary on 16-04-

5

2024, in order to discuss the complaint in question. Present at this meeting were the complainant A along with his attorney Vasileios Sotiropoulos (AMDSA ...) and on behalf of the Administrative Court of Appeal of Athens, G, Deputy Head of the Secretariat. During this meeting, the attendees expressed their views and were given a deadline to submit written statements, which were subsequently

submitted by the complainant and the Administrative Court of Appeal with documents numbered EIS/3848/25-04-2024 and G/EIS/3882/26-04-2024, respectively.

In the written statement following the hearing, the complainant stated, among other things, that "the Administrative Court of Appeal of Athens is represented by the President of its Three-Member Management Council before the Authority, as is evident from the document numbered ... from the Deputy President of the Three-Member Management Council of the Administrative Court of Appeal of Athens D, President of the Administrative Courts, to the Authority," with which he responded regarding the complaint under consideration and from which "it emerges that when for any reason the President of the Three-Member Council is impeded or absent, he is replaced by a Judicial Officer (and not by an employee), as occurred in this case and certainly not by the Head of the Court's Secretariat, and therefore, in the case at hand, the Head of the Secretariat does not legally represent the respondent and for this reason, any claim made by her must be dismissed as inadmissible due to lack of passive legitimacy." Regarding the substance of the complaint, the complainant invokes the following violations by the Administrative Court of Appeal: i. denial of access to data concerning him, and ii. failure to appoint a Data Protection Officer (hereinafter DPO). The complainant also states that although "he has had an official laptop since May 2023, access to the data he had stored on the computer he was using until the year ... has not been restored, as this data was included on the hard drive of the official laptop that subsequently went to a 'Department of the Bench' and was never returned to him. On this hard drive, the complainant had stored his evaluation reports and therefore the relevant access has not been restored. Additionally, the same hard drive contains the complainant's 'browsing history' on the Internet, which is also personal data and is absolutely useful for the complainant in order to counter false accusations he has faced regarding his alleged unjustified absence from service, which is refuted by his browsing history during his service hours, while he was indeed at his computer screen. The complainant has submitted requests for access to his official file that remain pending, as even today he has not regained access to his official file. The pending examination for the possible commission of a disciplinary offense does not constitute a legal reason for excluding the data subject from accessing his file. On the contrary, when an employee is accused of committing a disciplinary offense, there is an additional reason for facilitating this access: the defense of his rights and the easy handling of the accusations against him. This is not a conduct of any confidential investigation where access could hinder its progress as stipulated in Article 5 paragraph 4 of Law 2690/1999, nor does the respondent invoke such a circumstance." Following the above, the complainant concludes that there has been a violation of his right of access both regarding the pending requests for access to his official file and regarding access to data concerning him on the initial electronic computer provided to him by the service, namely evaluation reports and his browsing history on the Internet, and requests that the Authority impose on the respondent to grant access to the complainant's official file, as well as to restore his access to personal data contained on the hard drive of the computer that was taken from him in the year

The representative of the accused Administrative Court of Appeal of Athens, in the written statement submitted to the Authority following the hearing, states that during the period when the complaint was submitted, the individuals serving as the President of the Three-Member Management Council of the Administrative Court of Appeal of Athens, as well as the Head of the Secretariat, have already retired, and consequently cannot know the actual facts; for this reason, she refers to the document numbered ... from the then Deputy President of the Three-Member Management Council of the Court and clarifies the following: "1. The physical official files of all judicial employees serving in this Court are kept and incorporated in a secure area in the Personnel Department. Each individual document incorporated into the physical file is also communicated to the General Directorate.

7

of the Administrative Courts in order to be incorporated into the corresponding physical file. When required, the service files are forwarded to the Five-Member Service/Judicial/Disciplinary Council of the Administrative Court of Appeals of Athens, each of which is composed of one (1) President of the Administrative Court of Appeals, two (2) Administrative Court of Appeals judges, and two (2) judicial employees as elected members. In this specific case, from the beginning of 2019 until the end of 2023, A had numerous cases, some of which are still pending today. Consequently, his service file, when

required, was transmitted to the competent council – Rapporteur. His disciplinary file, in light of continuous postponements, is with the 5-member Disciplinary Council because it is pending due to awaiting a decision from the Council of State. The Personnel Department, based on the written documents submitted by the employee, updates the digital application "Human Resources Registry of the Greek Public" (apografi.gov.gr). The employee has internet access to this application from anywhere, using personal public administration codes that he himself designates. Through this service, he checks his details and informs the Personnel Department of any changes. Therefore, it is not related to the use of a personal computer in his workplace. The use of computers at the Administrative Court of Appeals of Athens is exclusively for service purposes. The processing and storage of personal documents and data through these computers is not provided for; therefore, the Court is not responsible for any loss of personal documents stored on service computers. 2. Regarding the complainant's claim that with the removal of the service computer he had no access to the OSDDY-DA and consequently could not work, it is noted that when a new judicial employee is appointed, he is integrated into the users of the OSDDY-DA application and email and is provided with a user code, with which, once registered in the court's employee registry, he can access the OSDDY-DA and his service email from any court computer that is connected via cable to the Internet. It also states that "the computers are not personally assigned to each employee, nor is their allocation to employees mandatory, but is at the discretion of the service based on service needs and the tasks assigned to them. [...]". 3. The operation of the Administrative Courts of all levels is supported by the Integrated System for the Management of Judicial Cases of Administrative Justice (OSDDY-DA). This is a Central Database, to which all Administrative Courts are connected through applications, which allows for the central storage and safeguarding of all data concerning Administrative Justice. Consequently, every document related to the Judicial Process is securely stored in the system, and any damage occurring to individual terminals does not affect the security of the system and the completeness of the data.

The Authority, after examining the contents of the file and what emerged from the hearing before it, the memoranda, and the statements of the parties, having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since, from the provisions of Articles 51 and 55 of the General Data Protection Regulation (EU) 2016/679 (hereinafter "GDPR") and Article 9 of Law 4624/2019 (Government Gazette A'137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.

2. Since Article 55(3) of the GDPR states that "[s]upervisory authorities are not competent to monitor processing operations carried out by courts in the exercise of their judicial functions." Furthermore, in Recital 20 of the GDPR, it is stated that "While this Regulation applies, among other things, to the activities of courts and other judicial authorities, Union or Member State law could specify the acts and procedures of processing in relation to the processing of personal data by courts and other judicial authorities. The competence of supervisory authorities should not cover the processing of data...

2 Official Journal of the European Union L 74/35 of 04-03-2021 "Corrigendum to Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation).

9

personal data, when courts act in their judicial capacity³, in order to ensure the independence of judicial officials in the exercise of their jurisdictional duties, including decision-making. The supervision of such data processing operations should be able to be assigned to specialized bodies within the judicial system of the Member State, which should in particular ensure compliance with the rules of this regulation, raise awareness among judicial officials regarding their obligations under this regulation, and address complaints related to such data processing procedures. Furthermore, Article 10, paragraph 5 of Law 4624/2019 provides that "The Authority is not competent to supervise acts of

processing personal data carried out by judicial and prosecutorial authorities in the context of their judicial function and their judicial duties [...]".

3. Considering that the Authority, taking into account that:

- i. the Court of Justice of the European Union⁴ interpreted the provision of Article 55, paragraph 3 and Recital 20 of the GDPR, and accepted, among other things, that: "(...) 34. Therefore, the reference in Article 55, paragraph 3, of Regulation 2016/679 to the processing operations carried out by courts 'in the context of their jurisdictional competence' has, within the framework of this regulation, the meaning that it is not limited to the processing of personal data carried out by courts in the context of specific cases, but that it relates, more generally, to all processing operations carried out by courts in the context of their jurisdictional activity, resulting in the exclusion from the competence of the supervisory authority of the processing operations whose oversight by this authority could, directly or indirectly, affect the independence of judicial officials and weigh on their decisions. 35. In this regard, the nature and purpose of the processing carried out by a court, although primarily related to the examination of the lawfulness of the processing, may nevertheless provide indications from which it can be inferred that the processing falls within the exercise, by that court, of its 'jurisdictional competence'." ⁵
- ii. in his submissions in the same case⁶, the Advocate General states that "In summary, I propose that the term 'acting in the context of their jurisdictional competence', as included in Article 55, paragraph 3, of the GDPR, be approached from an institutional perspective ('is it a court?'), which will then be corrected, possibly, by a functional assessment of the nature of the activity in question ('what specific type of activity is the court engaged in?'). In light of the purpose set out in Recital 20 of the GDPR, according to the latter assessment of activities, a broad interpretation of the concept of 'jurisdictional competence' should be applied, which extends beyond the mere decision-making by a court in a specific case. It should also cover all activities that may indirectly affect the independence of judicial officials. Therefore, it should generally be considered that courts act in the context of their 'jurisdictional competence', unless it is established, regarding a specific type of activity, that it has an administrative character only."

It concludes that it has the authority to examine the complaint in question, as the personal data whose processing is being investigated pertains to a judicial employee and falls within the scope of the administrative duties of the Administrative Court of Athens, and there is no risk of adverse effects on the jurisdictional work of the Court, since the activity to which the complaint relates does not appear to be connected in any way to the exercise of jurisdictional work; any decision by the Authority regarding the complaint does not concern acts or omissions of judicial officials within the meaning of Articles 87 et seq. of the Constitution, but rather issues of administrative organization and operation of the Service that assists the Court.

4. Considering that, according to Article 12 of the GDPR, "3. The data controller shall provide the data subject with information regarding the action taken in response to their request under Articles 15 to 22 without undue delay and in any case

5 See relevant decision No. 5/2024 of the Authority, available on its website

6 See Case C-245/20, Opinions of Advocate General Michal Bobek 06-10-2021, para. 100

11

within one month from the receipt of the request. This deadline may be extended by two additional months, if necessary, taking into account the complexity of the request [...] The data controller informs the data subject of the said extension within one month from the receipt of the request, as well as the reasons for the delay [...] 4. If the data controller does not act on the request of the data subject, the data controller informs the data subject without delay and at the latest within one month from the receipt of the request, of the reasons for not acting and the possibility of lodging a complaint with a supervisory authority and exercising a right of appeal.

5. Whereas, according to Article 15 of the GDPR, "1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data and to the following information [...] 3. The data controller shall provide a copy of the personal data undergoing processing. [...] 4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others."

6. Whereas, according to the provisions of Article 4, point 12 of the GDPR, a personal data breach is

understood as “a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed.” This definition is further explained regarding the concepts of “destruction - damage - loss” in the Guidelines of Article 29 on the notification of personal data breaches under Regulation 2016/679 as follows: “(...) It should be absolutely clear what is meant by ‘destruction’ of personal data: this is the case where the data no longer exists or no longer exists in a form that can be used by the data controller. The term ‘damage’ should also be relatively clear: this is the case where personal data has been altered, distorted, or is no longer complete. As for the ‘loss’ of personal data, the term should be interpreted as a case where the data may still exist, but the data controller has lost control of it or access to it or no longer possesses it (...)”

7. Also, according to Article 33, paragraph 1 of the GDPR, “In the case of a personal data breach, the data controller shall notify the supervisory authority without undue delay and, where feasible, not later than 72 hours after becoming aware of the breach, unless the personal data breach is unlikely to result in a risk to the rights and freedoms of natural persons [...]”.

8. Whereas, according to Article 37 of the GDPR “1. The data controller and the processor shall designate a data protection officer in every case where: a. the processing is carried out by a public authority or body, except for courts acting in their judicial capacity [...] 7. The data controller or the processor shall publish the contact details of the data protection officer and communicate them to the supervisory authority.” Furthermore, Law 4624/2019 in Article 6 provides that “1. Public authorities shall designate a data protection officer. [...] 5. The public authority shall publish the contact details of the DPO and communicate them to the Authority [...]” and in Article 8, paragraph 2 that “The duties of the DPO who may be designated by judicial and prosecutorial authorities do not concern the processing operations carried out by the judicial and prosecutorial authorities in the context of their judicial functions and duties.”

9. Whereas, in the case under consideration, from the elements of the file, the hearing of the involved parties, as well as the submitted memoranda, it appears that:

- i. the complainant is an employee of the Administrative Court of Appeal of Athens, whose personal data is processed by the Court based on this employment relationship, and therefore, the Administrative Court of Appeal becomes the data controller of the personal data of the complainant.
- ii. regarding the complainant's assertion that the Administrative Court of Appeal was not legally represented before the Authority and “for this reason, every claim must be dismissed as inadmissible due to lack of passive legitimacy,” it is noted that the Authority sent the letter No.

G/EK/1115/10-04-2024.

7 WP250rev.01 of 03.10.2017, as finally revised and issued on February 6, 2018, available on the website http://ec.europa.eu/justice/data-protection/index_en.htm, p. 7.

****13****

Before the Plenary of the Authority to the President of the Three-Member Council of the Administrative Court of Appeal of Athens, with attached the memorandum dated 31-08-2021 of the complainant and all relevant documents of the complaint, in order to gain full knowledge of the complaint file and to appoint a legal representative to appear before the Authority, excluding the possibility that the document escapes the attention of the competent Service, and to fully ensure the right of prior hearing of the complained party. The document of the Authority's summons meets the formal requirements, as it contains all the formally required elements provided by law and was sent to the President of the Three-Member Council representing the Court, who also bears the responsibility for the representation of the Court and the submission of its views on the complaint under examination. Specifically, the “passive legitimization,” the lack of which the complainant invokes as a reason for the unlawful representation of the Administrative Court of Appeal of Athens before the Authority, concerns the capacity to appear of the party in the context of judicial disputes, which does not equate to the capacity to appear before the Authority, namely the representation of the data controller and the conduct of procedural acts before it. Therefore, the above claim of the complainant is to be rejected.

****iii.****

With the document under protocol number ... that the complainant submitted to the Administrative

Court of Appeal of Athens, he requested access to his service file, which did not exist in the Service's Archive, raising the questions a. where is the file, b. since when, c. for what reason, to which he did not receive a response from the data controller. From the responses that the Authority has received from the Administrative Court of Appeal, it appears that the data controller has not satisfied the complainant's right of access to his service file, which contains all documents and information that determine the personal, family, property, and service status of the employee, without, however, presenting valid reasons for the non-satisfaction of this request, such as any obstruction of some internal process of the Court. Furthermore, the fact that there is the possibility through the digital application "Human Resources Registry of the Greek Public" for the subject itself to search for the details of its file does not negate the obligation of the data controller to respond, even negatively, to the subject's request, while the lack of response from the data controller constitutes a separate violation of Articles 12 paragraph 3 and the corresponding right of the GDPR. Regarding the removal in the year ... of the computer that the complainant used in his office, a fact that deprived him of access, on the one hand, to files containing personal data concerning him that he had stored on it, and on the other hand, to the OSDDY-DD platform, where there are documents containing personal data of the complainant, the Administrative Court of Appeal, with its document number ... to the Authority, responded that the files that the complainant had in his personal file on his computer exist in "backup" and that in response to the question posed to the complainant whether he needed them, the latter answered negatively. However, as it appears from the file's data, the complainant from the removal of the computer on ... no longer had the ability to access documents containing personal data concerning him, his evaluation reports, as well as his "browsing history" on the Internet that had been stored on the hard drive of that computer. It is noted that in the Guidelines 1/2022 of the European Data Protection Board regarding the rights of data subjects – right of access, it is explained that the right of access consists of three components: a) confirmation of whether personal data is being processed, b) access to it, and c) provision of information regarding the processing. It is further clarified that the critical time for assessing the existence of the first aforementioned element (i.e., the processing of personal data) by the data controller is the time of exercising the right, and its satisfaction requires the existence of...

15

of personal data (availability) at this time.¹¹ Following the above, the Authority finds that the Administrative Court of Appeals of Athens, as a public body responsible for processing, has not satisfied the complainant's right of access and has violated Articles 15(1) and (3) in conjunction with Article 12(3) of the GDPR. Therefore, the exercise of the Authority's corrective power under Article 58(2)(b) of the GDPR is appropriate, issuing a reprimand to it, as well as under Article 58(2)(c) of the GDPR by imposing on it, as an appropriate corrective measure, the obligation to satisfy the complainant's right of access both to his service file, providing copies of all documents containing personal data concerning him, and to the hard drive of the computer he used until the year ..., providing copies of documents referencing his name, his evaluation reports, and the complainant's internet browsing history, considering that the complainant has had a computer since May 2023 and access to the OSDD-DA has been restored.

14. Since the Administrative Court of Appeals of Athens, in its administrative capacity, is obliged to appoint a DPO for matters related to the protection of personal data of its employees, the details of which it must publicize and notify to the Authority. However, from the case file, it does not appear that the Administrative Court has appointed a DPO, as there is no mention of this issue in the memorandum submitted after the hearing, even though its representative was asked about it during the hearing and reserved the right to respond in the memorandum. Furthermore, following a search on 09-12-2024 in the Authority's electronic system, where the notifications of DPOs of legal entities/bodies are recorded, no relevant statement from the Administrative Court to the Authority was found. Therefore, the Authority finds that the Administrative Court of Appeals of Athens, as a public body responsible for processing, has violated Article 37(1)(a) and (7) of the GDPR and Article 6(1) and (5) of Law 4624/2019, and the exercise of the corrective power under Article 58(2)(d) of the GDPR is appropriate, imposing on it, as an appropriate corrective measure, the obligation to appoint a Data

15. Regarding the complainant's claim that due to the flooding in a part of the Administrative Court of Appeals, the court's computers were damaged and for this reason the data controller should have reported a personal data breach incident to the Authority, the case file does not indicate that, because the computer was removed from the complainant's office through specific actions of the Court, and he did not have access to documents containing personal data, a breach of the personal data processed by the Administrative Court of Appeals of Athens occurred. Moreover, it is not substantiated and does not appear that there was a breach of confidentiality, integrity, and availability of personal data due to the flooding, and therefore, there was no obligation for the Administrative Court of Appeals of Athens to notify a personal data breach incident, and no corresponding violation of Article 33 of the GDPR is established.

Based on the above, the Authority unanimously decides that corrective measures, as mentioned in the operative part, should be imposed on the Administrative Court of Appeals of Athens, as the responsible processor, which are deemed appropriate according to the severity of the violations.

FOR THESE REASONS

The Authority

A. Issues a reprimand to the Administrative Court of Appeals of Athens, as the responsible processor, based on Article 58(2)(b) of the GDPR, for the violation of the right of access (Articles 15(1) and (3) of the GDPR and Article 12(3)), and based on Article 58(2)(c) of the GDPR, orders the Administrative Court of Appeals of Athens to immediately satisfy the complainant's right of access, both to his service file, providing copies of all documents containing personal data concerning him, and to the hard drive of the computer he used until the year ..., providing copies of documents referencing his name, his evaluation reports, and the complainant's internet browsing history.

B. Calls upon, pursuant to Article 58(2)(d) of the GDPR, the Administrative Court of Appeals of Athens, as the responsible processor, to ensure the appointment of a Data Protection Officer in accordance with the requirements of the GDPR, within two months from the notification of this decision.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou